

myfood Support Proposal

(1-Jan-2024 to 31-Dec-2024)

January 18th, 2024

Version: 1.02

Submitted To



Compass Group (Australia) Pty Ltd.

Ground Floor, 35 Mitchell Street,
McMahons Point, NSW, 2060

www.compass-group.com.au

Submitted By



Path Infotech Pty Ltd.

Level 14, 3 Parramatta Square,
153 Macquarie St.,
Parramatta NSW 2150

ACN: 603374849

www.pathinfotech.com

Change Record

Date	Author	Position	Version	Change reference
4-Dec-2023	Manik	AVP Pre-Sales	1.00	Base version
11-Dec-2023	Manik	AVP Pre-Sales	1.01	Remove Infra & defined L2, L3, revised commercials
18-Jan-2024	Manik	AVP Pre-Sales	1.02	Updated support processes

Review / Approvals

Name	Version approved	Position	Date
Vinay Gupta	1.02	Head – Customer Success	18-Jan-2024

Queries Related to this Document should be addressed to:

Vinay Gupta
Head – Customer Success
vgupta@pathinfotech.com

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1. Executive Summary

Path Infotech Pty Ltd. (Path) is pleased to submit its proposal for myfood product application support covering Functional, Technical Support to Compass Group (Australia) Pty Ltd. (Compass). Path's myfood support team will work closely and under guidance of myfood product development team & Compass myfood stakeholders. Besides this infrastructure for myfood product would be supported by existing Path's Compass BAU support team.

This document has been constructed based on information provided by Compass and Path's understanding of the support requirements defined. If the scope/assumptions of the project change, Path shall submit a revised proposal based on such changes or will follow the change management process.

Path is proposing 1-year contract term with option to renew based on review of both prices and services to be done after year 1.

Background

Compass Group as a company can trace its origins to the UK over 60 years ago. Compass Group was founded in 1941 as 'Factory Canteens Ltd' and since those humble beginnings, many businesses have joined Compass, helping to make the company the international business it is today. Compass Group was established in Australia in the year 1999.

Compass operates in key market sectors (as mentioned below) to provide world-class food and support services.

Key market sectors include Defense, Offshore & Remote, Business & Industry, Hospitals & Senior Living, Education, Sports & Leisure, Food Service, Fine Dining & Concierge, Support Services, Venues & Events, Facility Management, and Security Services.

Compass has an annual turnover of AUD 1.5 Billion and employee strength of 13,500.

The Need

- Compass Group Australia has initiated the program to develop a Product named as myfood, which is serving all Compass sites Recipe related management, menu creation, inventory, wastage etc. This project is enhanced to convert into a product which can be rolled over to various other Compass entities across the globe
- Path Infotech Pte. Ltd (Path) is already helping compass to develop the myfood product
- 1st phase of the myfood product with enhanced UI and existing business functionalities has been released to users on 21st Nov'23
- There is need to setup a dedicated centralised support team for myfood application with an objective
 - Quick resolution of issues raised by users
 - Increase user satisfaction & application availability
 - Repeat ticket analysis to drive ticket reduction
 - Strengthen support processes & controls
 - Improve stakeholders' communication
 - Industry standard support processes implementation



Path's Value Proposition

Path has successfully implemented the following projects and solutions to Compass:

- Multiple Migration & upgrade of Oracle e-Business Suite both on cloud & on-premises
- Migrated Oracle middleware to custom middleware SSIS based solution on AWS cloud
- Migrated Oracle DRM to a custom web application (CCM)
- Implemented a strategically important Defense project for integrating Defense with Pronto
- Provided support for additional servers, applications, and integrations in the last seven years.
- Provision of a pool of highly experienced resources with functional & technical skills on Oracle EBS, Microsoft technologies, Integration, BI, Infrastructure, SI.
- Flexibility in providing services across areas with Centre of Excellence and on a resource basis for areas with limited capabilities and competencies.
- One-Stop-.Shop providing end-to-end services related to E-Business Suite such as Implementation, Roll-out, R12 Assessment, Platform Migration, Database Upgrade, Enhancement / Integration, Application Developments, Testing & Validation, Learning & Enablement, Application, Infrastructure, Cloud & Database support
- *Path over several years built & supported earlier version of myfood recipe management system and was successful.*
- *In 2023 Path built new Avatar of myfood recipe management system and Path's product development team continues to build additional modules & functionality for same.*
- *By Virtue of working on myfood Path has expertise on functionality, technology used in the system and COE of support, Path can provide highly satisfactory, optimized, scalable and seamless support.*
- *Path is pleased to take ownership to provide managed support services with minimum involvement of Compass resources to achieve the said objectives for the myfood applications*



2. Scope

2.1 Scope of Engagement

Scope of engagement is to provide BAU support covering Functional, Technical parts of myfood application for one (1) year starting from 1-Jan-2024 to 31-Dec-2024, with option to renew based on review of both prices and services to be done after year 1.

- Services Required under support of myfood application
 - Application support covering
 - User Enablement & handholding
 - Timely closure of user issues being reported
 - Bug fixes
 - Performance Management

Detailed scope/exclusion with respect to the engagement is covered in subsequent sections.



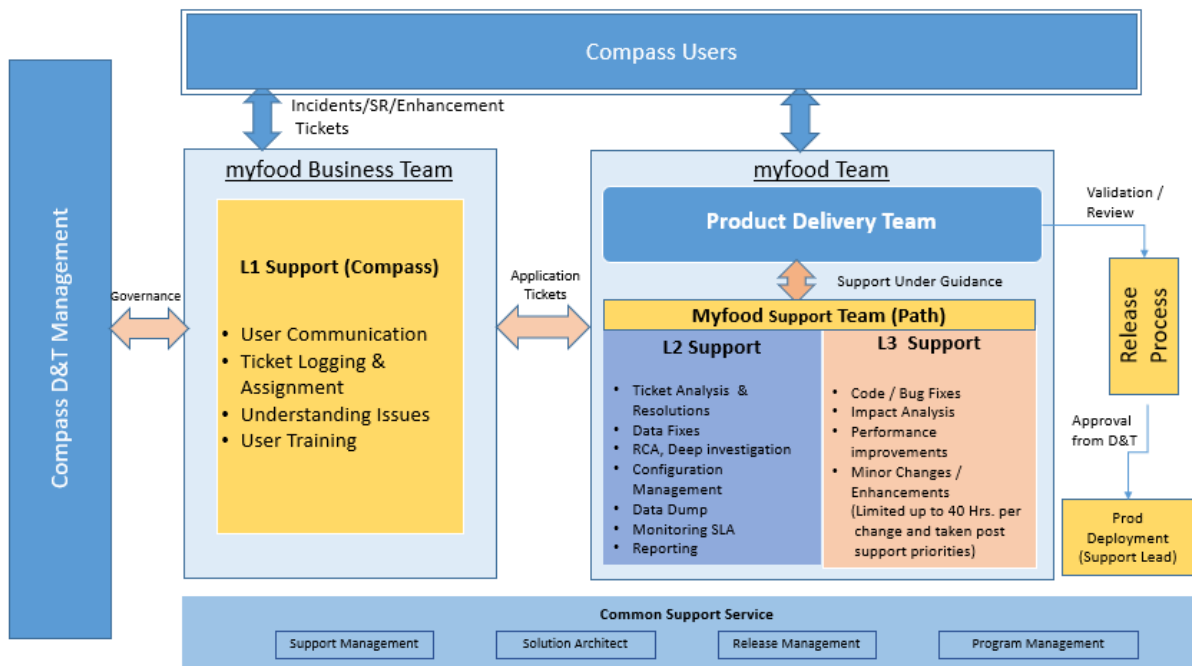
2.2 Scope Details

Support model Aspect	Detail
Applications	Compass- myfood
Services	- L2 & L3 Support Note: - Helpdesk, Ticket Triaging and user training related tickets will be managed by Compass business team - MS-SQL DBA & Middleware support for myfood application servers will be covered under existing BAU support
Coverage window / hours	- Single Shift (Offsite / Remote) - Mon to Fri, Single Shift (9:00 AM to 5:00 PM AEST) - Beyond regular support hours - P1 Issues only Note: Support window & commercial will be adjusted basis mutual agreement in future to cover all sites and tickets volume being rolled out
Support Tools used	Service Now, GitHub, Jira etc. Tools provided and any associated costs by Compass
Technology Stack	Dot Net Core, MSSQL
Governance and Measurement criteria	Monthly status report and review meeting

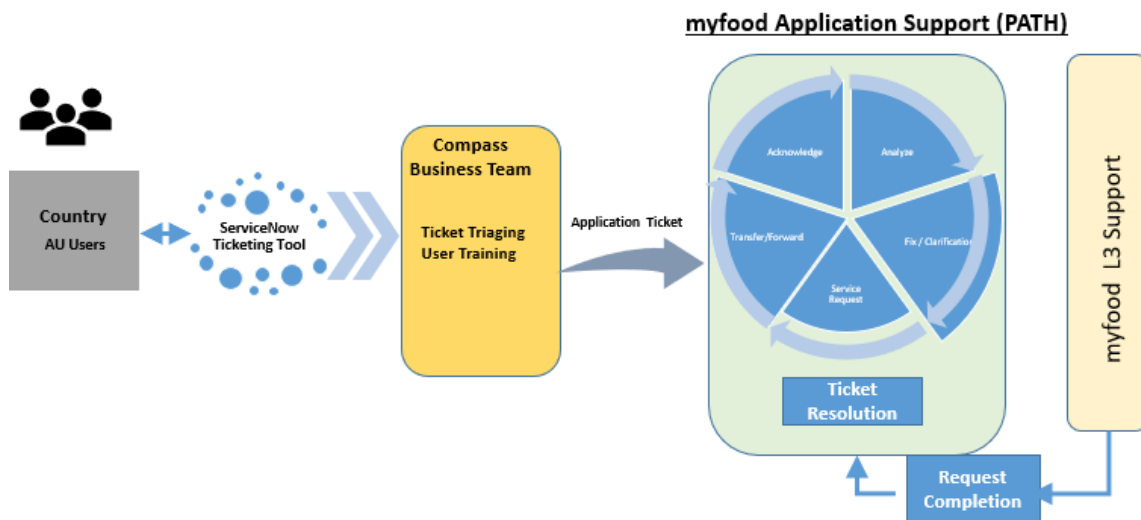


3. Scope Model , Metrics, Team

3.1 Scope Model

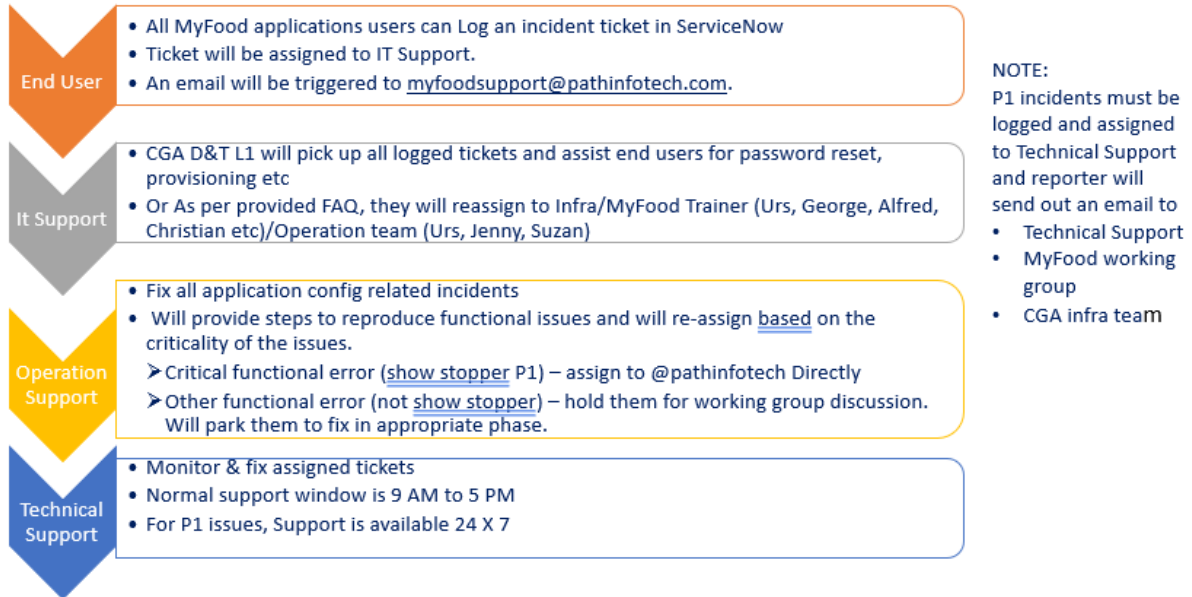


3.2 Support Process



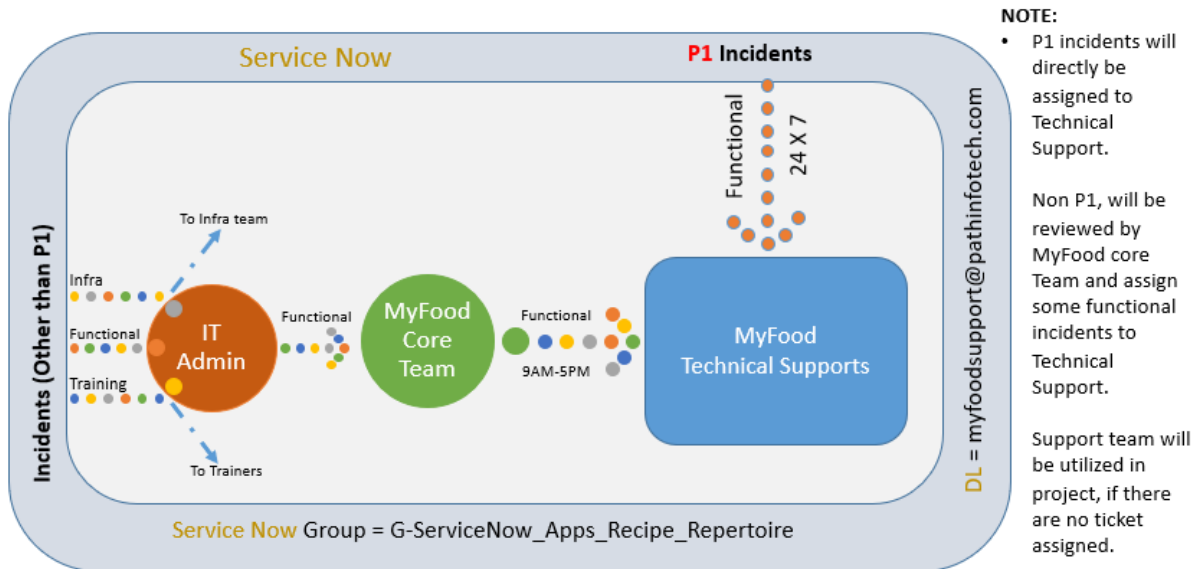
3.3 Support Process - Definition

Following is incident workflow



3.4 Support process contd..

Following shows how an incident will be assigned to Technical Support team



3.5 Service Measurement

Service Level	Response Time	Resolution Time	Remarks
L2 Support	30 Min	As per agreed SLA with Business	• Ticket logging and share ticket number to the respective user, auto email from the system • Resolution of L2 tickets • Assign Code fix & Enhancements tickets to L3 team as per defined SOP • Resolution of assigned tickets and update status in vManageIT system
L3 Support	8 Hours	As per agreed SLA with Business	• Resolution of assigned tickets and update status in system • Update status to L1 & L2 team

To be revised as per SLA agreed between D&T and Business



3.6 Support Team

#	Role	Resource Count	Allocation	Key Responsibilities
1	Support Lead	1	50%	- Lead role to manage the Support team for day-to-day activities - Analyze, Validate & Review the existing working of all tickets - Supporting Escalations of users - Reporting MIS preparations - Participate in review meetings - Knowledge & Team Management - Code Fixing - Enhancement within available band width under the project delivery framework
2	Support Engg.	1	100%	- User communication - Assigning ticket to the respective teams - Closing of support ticket as per the ticket category SLA - Support window coverage & Support as per defined SOP
4	L3 Team	Need basis	Flexible & Additional on Utilization Basis	- Enhancements - QC Note: - Enhancement requests will be executed basis prior approval from the D&T Team - Enhancement request will be managed within the available effort of support bucket - In case of additional effort to be provisioned to meet the business requirements, the same to be approved from the D&T in advance. Cost of the same will be charged additional to the monthly fixed support cost
5	PM	1	10%	- Monthly Review & Level 2 Escalation Point - Assurance of agreed processes
6	Solution Architect	1	10%	- Assurance of agreed architecture, technology & design - Solution/Code Review



4. Professional Charges & Terms & Conditions

This section details the professional charges applicable for the services under the Master services agreement signed on 14-Jan-15

#	Service	Rate (AUD)	Payment Term
1	Application Support from 1-Jan-24 to 31-Dec-24 (Fixed 160 Person Hours Monthly support)	12,000	- Fixed Monthly Charges - Monthly Billing
2	Additional L3 Support	69 per hour	Agreed rate/hour x actual utilization person hours beyond the allocated support hours (160 Person hours/month)



4.1 General Terms & Conditions

Following are the Terms and Conditions apply for this project:

1. Invoices and if any other claims, expenses will be raised in AUD.
2. Proposed rates are based on the current rate as of 16th December 2023 of 52.40 INR/AUD, any positive or negative variation beyond 7% would be adjusted accordingly and invoiced at prevalent rate at time.
3. The price mentioned above is exclusive of applicable taxes, taxes as applicable will be charged extra.
4. The quoted price is net off any upholding taxes or levies.
5. Payments shall be made within 60 days EOM in which invoice is raised.
6. This Proposal is subject to the terms and conditions specified in the PATH Master Services 2015 agreement, which shall take precedence over of any conflicting terms and conditions.
7. Either party can terminate the contract by giving 3 months' notice in writing.
8. Path agrees that the Compass D&T Addendum forms part of this Proposal.

For and on behalf of Path Infotech Pty Ltd.

For and on behalf of Compass Group (Australia) Pty Limited

_____(Signature)

_____(Signature)

Name: Vinay Gupta

Name:

Designation: Head – Customer Success

Designation:

END OF PROPOSAL

Addendum

Compulsory Addendum to Compass Group:

- **Digital Services and Technology Agreements; and**
- **Any contract where supplier receives any personal information of Compass Group employees or customers**



Despite any other provision of any agreement between the parties relating to the provision of products and services ("services"), the summary sheet below and the annexed data processing and security terms apply:

Code of Business Conduct	The Vendor will familiarise itself with the internal policies and procedures of Compass Group and where applicable its clients and shall at all times ensure due compliance by its employees, agents and contractors with those policies, procedures and all applicable laws, regulations and industrial awards and agreements, including all safety, health and environmental laws and regulations. Compass Group has a Code of Business Conduct (the "CBC") and Code of Ethics. Electronic copies can be downloaded from the following web site: https://www.compass-group.com/en/who-we-are/corporate-governance/policies.html The Vendor agrees to adhere to the principles and standards in the Compass Group Code of Ethics and the Compass Group Code of Business Conduct with respect to any services performed on behalf of or for the benefit of Compass. The Vendor shall: (i) carefully review the CBC and Code of Ethics; (ii) ensure that the CBC and Code of Ethics is disclosed to all of the Vendor's personnel; and undertakes and agrees that, in connection with the Vendor's performance under this Agreement, all the Vendor's personnel shall act consistently with the applicable principles of the CBC and Code of Ethics in all material respects.
Good industry practice	The Vendor will ensure all services are undertaken: in a sound and workmanlike manner; with due care and skill; to the standard expected of a competent Vendor; in accordance with all applicable laws; and consistently with best practice for the performance of services similar to the services.
Privacy and data protection	The Vendor must comply with (a) the Privacy Act 1988 (Cth) and the Australian Privacy Principles; (b) EU Directives 95/46/EC, 2002/58/EC and 2016/680 and the General Data Protection Regulation (EU) 2016/679; and keep all personal information confidential and protect it from unauthorised destruction, loss, alteration or disclosure or access.
Non-disclosure and limited use	Each party acknowledges that it may have access to certain Confidential Information of the other party, such Confidential Information to be used solely for purposes of the authorised use. The parties each agree that (a) they will not disclose the other party's Confidential Information to any third party, (b) they will not use the



	Confidential Information for any purpose other than as expressly authorised herein, (c) they will keep the Confidential Information secure at all times and (d) they will not copy or modify the materials, or any copy, adaptation, transcription, or merged portion thereof, except as expressly authorised by the other party or as required by law. Furthermore, each party will take reasonable measures to maintain the confidentiality of the Provider's Confidential Information, but not less than the measures it uses for its own Confidential Information
Intellectual Property	Each party shall have sole and exclusive ownership of all right, title and interest in and to its Confidential Information, intellectual property and materials (including ownership of all patents, trademarks, copyrights and trade secrets pertaining thereto), provided that if this agreement involves the development of any data, product or results specifically for Compass Group, the Vendor irrevocably assigns to Compass Group all rights to the data, product or results and all related intellectual property rights.
Third Party products and services	Vendor shall be solely responsible for proper licensing, maintenance and support, and certification of the compatibility of Vendor's own solutions with any third-party product, service or component that Vendor uses, installs, incorporates, leverages, interacts with, embeds or relies upon as part of the solution/services.
Change control	The Vendor must not make any changes to the services without first consulting with Compass Group, except as may be necessary due to urgent circumstances and provided Compass Group is promptly notified.
Quarterly reporting	The Vendor will report to Compass Group on request no more frequently than quarterly on any issue reasonably required by Compass Group which may include: DR testing; major incidents; availability; modern slavery.
Security	The Vendor must ensure it has adequate security arrangements in place including physical security, testing processes and procedures to assess hosted web application security must be defined and documented. At a minimum, these tests must consider: internal and external threats; inadvertent system misconfiguration; weak authentication (internal and external users); insufficient error handling; and the potential for sensitive information leakage.
Location of data	The Vendor must not allow any Compass Group provided or sourced data to be transferred, stored or processed out of Australia without Compass Group's express written approval. The Vendor must if requested by Compass Group, promptly provide to Compass Group free of charge any Compass Group provided or sourced data.
Data encryption	(1) Vendor and all affiliates of Vendor and subcontractors must encrypt any sensitive Compass Group data in transit and at rest.



	(2) Vendor may not store, transport, or keep Compass Group information on a laptop or any other mobile device or storage media, unless such information is encrypted. (3) Vendor must have in place encryption key management practices to ensure the confidentiality of Compass Group information.
Application software	(1) Vendor shall employ reasonable efforts to ensure all software utilised or provided pursuant to this Agreement will be or has been developed using secure coding practices in a manner that minimises security flaws. (2) Vendor shall actively use code analysis software for both static and compiled code on a regular basis to identify any security flaws in the production environment. If any issues are identified, Vendor will take immediate steps to restore the software code base to a secure condition. In addition, Vendor shall use code scanning software during all development phases and new releases to ensure new software code is being produced without security issues and in a secure state before being promoted to the production environment. (3) Vendor warrants and covenants that it shall use commercially reasonable efforts to avoid the coding or introduction of viruses into the systems used to provide the services under this Agreement
Training and supervision	Vendor agrees that it maintains adequate training programs to ensure that its employees and any others acting on its behalf are aware of and adhere to its information security program.
Personnel	Vendor's personnel who are providing services to Compass shall comply with Compass Group's standard security and data access rules and procedures. In the event that any Vendor personnel performing services is found to be unacceptable to Compass, Vendor shall remove said personnel from performing services and, if requested by Compass, provide a qualified replacement. Vendor agrees to use its best efforts to insure the continuity of Vendor personnel assigned to perform services for Compass.
Subcontractors	The Vendor must ensure that any subcontractor or consultants engaged by Vendor are bound by the terms in this addendum.
Audit	Compass Group may, at its own cost, audit the Vendor's compliance with this Agreement at any time after giving the Vendor reasonable prior notice. The Vendor will provide reasonable assistance to Compass Group to enable it to perform any audit.



Incident reporting	The Vendor will promptly notify, and provide details, of any information security incidents.
Access to information	The Vendor will limit access to Compass' information to the extent necessary to perform the services.
Return or destruction of information	The Vendor will, on request and free of charge, return or destroy Compass Group's information (except to the extent as may be required by law).
Responsibility	The Vendor hereby agrees to indemnify, defend and hold harmless Compass Group, and each of its affiliates, agents, employees, representatives, and contractors, from and against any and all claims, demands, causes of action, liabilities, losses, damages, costs, and expenses, including reasonable legal fees and litigation expenses, arising out of, relating to or resulting from (a) the Vendor's non-compliance with any applicable law, (b) the breach of this Agreement by the Vendor, (c) any negligent or intentional act or omission of the Vendor or its agents, representatives, employees, or contractors, (d) any claim that work product, services, equipment, products, or deliverables by the Vendor infringes or misappropriates any patent, copyright, trade secret, trademark, or intellectual property right of a third party, and (e) personal injury, death, or property damage caused by a defect in any equipment or product provided or sold by the Vendor to Compass Group. The Vendor further agrees to pay all costs and expenses, including reasonable legal fees, which may be incurred by Compass Group in enforcing any of the obligations of the Vendor under this Agreement. The provisions of this section shall survive the expiration or termination of this Agreement with respect to any claim, loss, liability, cost or expense, whenever incurred or asserted, arising out of any act, omission, condition or event that preceded such expiration or termination.
Insurance	Throughout the term of this Agreement and for a period of 1 year thereafter unless specified otherwise, Vendor shall procure and maintain at its own expense the following insurance: (1) Product and Public Liability Insurance: \$10,000,000; (2) Professional Indemnity Insurance: \$1,000,000 in the aggregate, and to be maintained for six years after the termination of this Agreement; (3) Workers' Compensation: as required by law.
The following clauses Penetration Testing, Infrastructure Standards and SAAS and Vendor Hosted Solutions will apply to SaaS Products and Services only.	
Penetration testing	The Vendor will undertake periodic web application security assessments (including penetration tests) for all critical hosted applications (both internal and external) to identify potential or realised weaknesses as a result of inadvertent misconfiguration, weak authentication, insufficient error handling, sensitive information leakage, etc.



	The Vendor must ensure results are documented, retained and remedial action taken as appropriate.
Infrastructure standards	The Vendor must ensure it has appropriate processes and procedures in place to deal with: patching; vulnerability management; monitoring and backup.
SAAS and Vendor hosted solutions	Services will be provided using industry-standard cloud host environment, such as but not limited to Amazon Web Services, which shall include the following. (a) SSAE 16 certified (or equivalent) data centre; (b) high-speed cloud computing servers, internet access, and infrastructure; (c) resilient, redundant IT architecture designed to tolerate system or hardware failures; (d) access to the data centre facilities will be limited to authorised data centre personnel; (e) maintenance of appropriate environmental, safety and facility procedures, data security procedures and other safeguards against the unauthorised access, destruction, corruption, loss or alteration of the Service; (f) ongoing host environment infrastructure, hardware and software maintenance, to include all enhancements (which will include any bug fixes, patches, updates, upgrades or similar enhancements or repairs) as they become available; and (g) Vendor will not comingle Compass Group provide or sourced data with any other customer's data. Upon termination of this Agreement, Vendor will transfer a complete copy of the then-current Compass Group data to Compass Group or its designee, in machine readable format. Upon written confirmation from Compass Group that all data has been received in a machine-readable format, Vendor shall delete all copies of Compass Group data from its computer equipment and other media, including any remaining backup copies.



Annexure - Data processing and security terms

(a) Personal Information

- (i) If the Vendor receives, stores, or has access to any personal information of customers or employees of Compass Group ("Personal Information"), Vendor will implement and maintain a comprehensive written information security program that includes appropriate administrative, technical, and physical safeguards and other security measures in compliance with industry best practices and all applicable privacy and information security laws and regulations, including, if applicable, the General Data Protection Regulation ("GDPR" I (EU) 2016/679). The information security program must be designed to: (A) ensure the security and confidentiality of such Personal Information; (B) protect against any anticipated or reasonably likely threats or hazards to the security or integrity of such Personal Information; (C) protect against any actual or suspected unauthorised access to or use, disclosure, processing or acquisition of such Personal Information ("Information Security Incident" or "Breach"); and (D) ensure the proper disposal of Personal Information.
- (ii) In the event of an Information Security Incident, Vendor will immediately (A) use best efforts and take all necessary actions to prevent, contain, mitigate, and remediate the impact of the Breach; (B) investigate the Breach and perform a root cause analysis, including without limitation, a security assessment and security audit and forensic analysis of the Breach; and (C) notify Compass Group in writing of such Breach, but in any event within 2 business days, and provide Compass Group with assurances that the Breach is not likely to recur. Such notice shall summarise in reasonable detail the effect of the Breach on Compass Group, if known, and the corrective action taken or to be taken by Vendor. In addition to the foregoing, Vendor will:
 - (A) collect and preserve all evidence concerning the discovery, cause, vulnerability, remedial actions, and impact related to the Breach, including without limitation, any security assessment and security control audit reports, logs, and any forensic analysis of the Breach;
 - (B) document the incident response and remedial actions taken in detail, which shall meet reasonable expectations of forensic admissibility;
 - (C) retain a qualified security consultant or service provider to conduct a security assessment to determine whether Vendor was compliant with the Privacy Laws and Regulations at the time of the Breach;
 - (D) promptly take all necessary and advisable corrective actions and cooperate fully with Compass Group in all reasonable and lawful efforts to prevent, mitigate or rectify the Breach;
 - (E) obtain Compass Group's approval of any filings, communications, notices, press releases or reports related to the Breach prior to any publication or communication thereof; and
 - (F) reimburse Compass Group on demand for costs incurred by Compass Group arising out



of or in connection with any such Breach; such "Incident Related Costs" shall include Compass Group's internal and external costs associated with addressing and responding to the Breach, including but not limited to: (A) preparation and mailing or other transmission of legally required notifications and related communications that Compass Group deems reasonably appropriate; (B) establishment of a call centre or other communications procedures in response to the Breach (e.g., customer service FAQs, talking points and training); (C) public relations and other similar crisis management services; (D) legal, consulting, and accounting fees and expenses associated with Compass Group's investigation of and response to the Breach; (E) costs for commercially reasonable credit monitoring, identity protection, and similar services that Compass Group deems are advisable under the circumstances; and (F) containment, damage mitigation, and remediation costs that Compass Group deems reasonable under the circumstances.

- (G) Physical Security: Vendor must implement a secure and controlled physical environment, including both environmental and access controls. Vendor must reasonably protect physical locations in which any Compass Group information is stored or Compass Group owned equipment is located from physical dangers, including but not limited to: Physical intrusion, unlawful and unauthorised physical access; Heating, ventilation or air conditioning problems; Power failures or outages (i.e. uninterrupted power service); Fire; Theft; and Natural disasters (reasonable protection). (Applicable to SaaS Products and Services only)

(b) Hardware Platform (Applicable to SaaS Products and Services only)

Vendor shall responsibly supervise, manage, and control the use of all hardware devices provided under this Agreement, including, without limitation, providing all reasonable control and review techniques and other measures for promptly detecting and minimizing the effects of any errors, failures, interruptions, acts of vandalism, or negligent abuse of the platform that might occur.

(c) Software Platform

- (i) Vendor shall maintain a process to ensure that security patches are installed on a frequent and periodic basis.
- (ii) Vendor shall maintain regular patching levels of the operating system, databases, and application software via an automated patch management solution, including taking the necessary security protections as are reasonable under the circumstances. Reasonable security procedures shall include technologies to prevent, monitor, and remediate malware within the environment, including without limitation, antivirus solutions on the desktop, laptop, servers, networks, and gateway.

(d) Application Software

- (i) Vendor shall employ reasonable efforts to ensure all software utilised or provided pursuant to this Agreement will be or has been developed using secure coding practices in a manner that minimises security flaws.



- (ii) Vendor shall actively use code analysis software for both static and compiled code on a regular basis to identify any security flaws in the production environment. If any issues are identified, Vendor will take immediate steps to restore the software code base to a secure condition. In addition, Vendor shall use code scanning software during all development phases and new releases to ensure new software code is being produced without security issues and in a secure state before being promoted to the production environment.
 - (iii) Vendor warrants and covenants that it shall use commercially reasonable efforts to avoid the coding or introduction of viruses into the systems used to provide the services under this Agreement.
- (e) Network (Applicable to SaaS Products and Services only)

Vendor shall use industry standard firewalls to segregate trusted from untrusted networks. Vendor must test the effectiveness of its network segmentation on a periodic basis and promptly disable any unneeded network services.

- (f) Vulnerability Scanning & Independent Penetration Testing (Applicable to SaaS Products and Services only)
- (i) Vendor agrees to allow Compass Group (at Compass Group's expense) to perform, on a periodic basis, non-intrusive scans of the systems on which Compass Group data is held using a third-party commercially available security testing tool to provide a vulnerability assessment report.
 - (ii) If, after a scan, Compass Group determines (based on the vulnerability assessment report) that Vendor is non-secure, then upon written notice of such non-secure status, Vendor, at its cost and expense, shall use commercially reasonable best efforts to remedy the security flaws by modifying or replacing the vulnerability within 30 days of receipt of such written notice (the "Remedy Period").
 - (iii) Notwithstanding any provision of this Agreement to the contrary, if Vendor is determined to be non-secure as set forth above and remains non-secure at the end of the Remedy Period, Compass Group shall be entitled to terminate this Agreement immediately upon written notice to Vendor (without limitation of any other recourse or remedy Compass Group may have at law or in equity).
 - (iv) Vendor will engage an independent third party to conduct penetration testing on Vendor's systems on which Compass Group data is held on a yearly basis at Vendor's sole cost and expense. Such penetration testing will evaluate the security controls of the application, host, and network layers used to provide any applicable products and services in accordance with industry standard methodologies. Vendor shall provide Compass Group with summaries of such penetration testing reports upon request. Vendor will promptly notify Compass Group of any deficiencies identified as well as corrective actions necessary for all vulnerabilities. Should any critical weakness be identified, Vendor shall, and will cause its affiliates and Subcontractors (as applicable) to, undertake corrective actions within 7 calendar days of receipt of the report. Should any high weakness be identified, Vendor and its affiliates and subcontractors (as applicable) shall undertake corrective actions within 30 calendar days of receipt of the



report.

(g) Security Review and Audit

- (i) Compass Group has the right to audit evidence of controls to verify compliance to this and other contractual agreements between Compass Group and Vendor.
- (ii) Compass Group may conduct a security review of Vendor's information security program when reasonably required by Compass Group, in its sole reasonable discretion. Such reviews may be conducted on-site by Compass Group personnel or Compass Group's contracted third-party assessors and through remote surveys and interviews.
- (iii) At Compass Group's request, Vendor will provide Compass Group copies of its data privacy and security policies and procedures that apply to Compass Group assets. Subject to reasonable notice, Vendor shall promptly make available to Compass Group copies of any third-party data processing or information security assessment, test results, audit or review (e.g. SAS70, SSAE16, SOC2, SysTrust, and WebTrust) or other equivalent evaluations.
- (iv) Security relevant events, including, but not limited to, login failures, use of privileged accounts, changes to access models or file permissions, modification to installed software, or the operating system, changes to user permissions, or privileges or use of any privileged system function, shall be logged on all systems. Security logs shall be retained for a minimum of 90 days. Access to security logs shall be restricted to authorised persons.

(h) Data Encryption

- (i) Vendor and all affiliates of vendor and subcontractors must encrypt any sensitive Compass Group data in transit and encrypted at rest, when requested, including without limitation, data used for purposes of backup and authentication that it receives, processes, or handles using a solution that meets the legal, regulatory, and industry-accepted standards or products for data encryption.
- (ii) Vendor may not store, transport, or keep Compass Group information on a laptop or any other mobile device or storage media, such as USB, "thumb drives," DVDs, or CDs, unless such information is encrypted.
- (iii) Vendor must have in place encryption key management practices to ensure the confidentiality of Compass Group information. Keys must be protected from unauthorised use, disclosure, alteration, and destruction. If a private key is compromised, all associated certificates must be revoked.

(i) Backup and Disaster Recovery (Applicable to SaaS Products and Services only)



Vendor shall perform a daily secure backup of all data created by it in the performance of the Service and shall ensure that that an up-to-date backup is stored at secure facilities other than the main facilities used for the supply of the Service. If any Compass Group information becomes lost or corrupted, Vendor shall immediately restore the lost or corrupted Compass Group information from the latest backup maintained by Vendor. In the event a disaster causes Vendor to allocate limited resources between or among Vendor's companies and its affiliates, Compass Group will receive at least the same priority in respect of such allocation as Vendor's affiliates and Vendor's other preferred commercial customers.

(j) Training and Supervision.

Vendor agrees that it maintains adequate training programs to ensure that its employees and any others acting on its behalf are aware of and adhere to its information security program. Vendor shall exercise necessary and appropriate supervision over its employees and contractors to maintain appropriate confidentiality and security of Compass Group assets.

(k) Authentication

Vendor shall implement and maintain at a minimum the following authentication protocols:

- (i) All access to systems shall be controlled by an authentication method involving a minimum of a unique user ID/password combination.
- (ii) Privileged users and administrators must use TWO-FACTOR authentication.
- (iii) Passwords must be changed on a periodic basis.
- (iv) Passwords may never be stored in clear text.
- (v) All passwords must be complex and not easy to guess or crack. Effectiveness of authentication must be tested on a regular basis to ensure that unauthorised authentication is not easily permitted.
- (vi) Remote network access must be secured by TWO-FACTOR authentication.
- (vii) All activity performed under a User ID is the responsibility of the individual assigned to that User ID. Users shall not share their User ID/password with others or allow other employees to use their User ID/password to perform actions.
- (viii) Use of generic user account shall not be permitted.

(l) Access to Compass Group assets. (Applicable to SaaS Products and Services only)

Vendor shall implement and maintain at a minimum the following protocols related to access to Compass Group information, systems, and equipment ("Compass Group assets"):



- (i) Logical or network access to infrastructure housing Compass Group assets must be restricted and access allowed based on a "need to know" basis.
- (ii) Requests to access Compass Group assets must be documented and approved only based on a business need.
- (iii) On a reasonable periodic basis, Vendor must review and limit access rights it has granted to Compass Group assets. Upon termination or resignation of personnel or contractors, Vendor must timely revoke access to Compass Group assets.
- (iv) Upon request, Vendor shall provide to Compass Group a list of users with access to Compass Group assets.

